

Vinod Kumar v. State of U.P.

Allahabad High Court · Division Bench · 18 January 2023 · WRIT - C No. 36889 of 2022 · **Writ disposed on undertaking to withdraw theft recovery and issue a fresh provisional assessment.**

HEADNOTE

In a writ against a theft-of-electricity recovery notice, the Allahabad High Court treated an assessment issued on a printed provisional-assessment proforma but headed as a final assessment as a patent abuse of power showing no application of mind. After the Executive Officer undertook to withdraw the recovery and assessment and to issue a fresh provisional assessment, concluding proceedings strictly under the Electricity Supply Code, 2005, the Court disposed of the petition in those terms.

FACTUAL SUMMARY

Vinod Kumar challenged a recovery notice dated 14 September 2022 issued in an alleged theft-of-electricity case by Electricity Urban Distribution Division-XI, Varanasi. The assessment under challenge was on a printed proforma meant for a provisional assessment order, though headed as a final assessment. After an adjournment and a connected listing with Writ-C No. 37137 of 2022, the Executive Officer filed an affidavit that the recovery and the assessment would be withdrawn and a fresh provisional assessment issued. The Division Bench then disposed of the petition.

REUSABLE CONSTRUCTIONS

1. An assessment issued on a printed proforma meant for a provisional assessment, but headed as a final assessment order, is a patent abuse of power and discloses no application of mind. ¶ 2

HOLDING-UNITS

HOLDING-UNIT · UP-2005::16.1.4

theft assessment — provisional proforma issued as final order

HOLDING

A theft assessment issued on a printed proforma meant for a provisional assessment order, but headed as a final assessment, is a patent abuse of power and shows no application of mind. Where the licensee then undertakes to withdraw the recovery and the assessment and to issue a fresh provisional assessment, concluding the proceedings strictly in consonance with the Electricity Supply Code, 2005, the writ challenging the recovery notice is disposed in terms of that stand. ¶ 2-3

PRINCIPLE TAGS

theft-assessment-provisional-proforma-issued-as-final Applied to a 14.9.2022 theft recovery notice issued on a printed provisional-assessment proforma headed as a final assessment; the Court called that a patent abuse of power, and disposed of the writ on the licensee's undertaking to withdraw the recovery and assessment and to issue a fresh provisional assessment under the Electricity Supply Code, 2005. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ALLEGATION AND QUANTUM OF ASSESSMENT

The Court did not decide whether electricity had been stolen or what charges were due; proceedings were to restart with a fresh provisional assessment under the Supply Code, 2005. ¶ 3

